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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NEWS MEDIA'S SUR-REPLY
OPPOSING MOTION TO CLASSIFY
DEFENDANT'S MOTION FILED
JANUARY 9, 2026**

(Hearing Requested)

Case No. 251403576

Hon. Tony F. Graf, Jr.

The Deseret News, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, the Utah Headliners Chapter of the Society of Professional Journalists, The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL (Castle County Radio), KUER-FM, Lehi Free Press, The Park Record, CBS Broadcasting, Inc., The New York Times Company, Fox News Media, and Law & Crime Network (all collectively,

News Media) hereby submit this Sur-Reply Opposing Defendant’s Motion to Classify Defendant’s Motion filed January 9, 2026, to address new arguments included for the first time in Defendant’s Reply. The News Media requests a hearing on the motion.

1. *Gannett Co. v. DePasquale*

First, Defendant cites the 1979 case of *Gannett Co. v. DePasquale*, 443 U.S. 368 (1979), and asserts (at 3) that it “is more analogous to the circumstances here” than the Supreme Court’s subsequent and extensive authority on the First Amendment right of access. That assertion is puzzling, to say the least. *Gannett* was not a First Amendment access case. It dealt instead with the Public Trial clause of the Sixth Amendment, which guarantees a defendant the right to a public trial. *Id.* at 379. The issue was whether the news media or the public, as opposed to the defendant, could invoke the Public Trial clause to obtain access to closed hearings. *Id.* at 382-83. In a fractured plurality opinion, the Court held that the Public Trial clause of the Sixth Amendment is for the benefit of the defendant, and the public does not have any independent right to assert it to obtain access. *Id.*; *see also Ark. Television Co. v. Tedder*, 662 S.W.2d 174, 175 (Ark. 1983) (“The only clear holding agreed on by a majority of the [*Gannett*] Court was a finding that the *sixth amendment* did not provide the public with a constitutional right of access to pretrial suppression hearings.” (emphasis added)).

As for the First Amendment, contrary to Defendant’s implication, the Court *did not even reach that question*, noting old precedent holding there was no such right, but stating “we do not decide” whether the First Amendment provides a right of access, much less what such a right would look like or the test to overcome it. *Gannett*, 443 U.S. at 392.

Which makes sense, because *Gannett* was decided in 1979, a year *before* the Court first expressly recognized the public’s First Amendment right of access. In the term immediately

following *Gannett*, the Court decided *Richmond Newspapers v. Virginia*, 448 U.S. 555 (1980), in which the Court directly addressed the First Amendment question left unanswered in *Gannett*. In doing so, “the high court dramatically reversed its earlier course, [and] since then repeatedly has recognized a First Amendment right of access in criminal cases[.]” *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court*, 86 Cal. Rptr. 2d 778, 802 (Cal. 1999). “The seven-to-one reversal of the closure order in *Richmond Newspapers*, relying entirely upon the First Amendment, represented an extraordinary reevaluation by, and realignment of, the Court on the issue of access.”¹ As a result, “*Gannett* was effectively overruled within a year of its release.” *Id.* at 310; *see also NBC Subsidiary*, 86 Cal. Rptr. 2d at 800 n.22 (“Although no single case has expressly done so, the combination of *Richmond Newspapers* and *Waller* effectively overruled *Gannett*” (quoting Cerruti at 265)); *U.S. v. Hernandez*, 124 F. Supp. 2d 698, 701 n.1 (S.D. Fla. 2000) (rejecting application of *Gannett* to First Amendment access issue and explaining that *Richmond Newspapers*, in “holding that the public and press do share a right to attend a criminal trial, overrules [*Gannett*]”).

That is why, as the News Media has already explained, the decades of precedent following *Richmond Newspapers* regarding the constitutional right of access to pretrial suppression hearings and motion papers is sweeping and uniform. (Opp. at 3-5.) Indeed, as the Court said expressly in *Press-Enterprise II* just five years later, the “risk of prejudice does not automatically justify refusing public access to hearings on every motion to suppress,” and that “voir dire” is the preferred method of identifying “those jurors whose prior knowledge of the case would disable them from rendering an impartial verdict.” *Press-Enterprise v. Superior*

¹ Eugene Cerruti, “*Dancing in the Courthouse*”: *The First Amendment Right of Access Opens a New Round*, 29 U. Rich. L. Rev. 237, 262 (1995) (hereinafter, Cerruti).

Court, 478 U.S. 1, 15 (1984); *see also United States v. Campbell*, No. 1:19-cr-25, 2021 WL 1975319, at *2 (S.D. Ohio May 18, 2021) (“[H]earings on motions to suppress, like certain other pre-trial criminal proceedings, historically have been, and logically should be, open to the public,” and “the First Amendment right of access fairly extends to the exhibits used at such a hearing.”). Defendant has cited no contrary authority.

2. *State v. Archuleta*

Second, Defendant cites *State v. Archuleta*, 857 P.2d 234 (Utah 1993), and asserts (at 4) it is “[c]onsistent with” *Gannett* and “instructive here.” But because *Archuleta* actually *did* concern the public’s right of access under the First Amendment and the Utah Constitution, it has nothing to do with the Sixth Amendment issue in *Gannett*. And Defendant’s invocation of that case is equally puzzling given its full-throated recognition of the public’s constitutional right of access to pretrial documents filed in court proceedings. *Id.* at 238-39. Defendant is correct that the *Archuleta* court affirmed the district court’s denial of access to certain specific evidentiary documents, albeit on different grounds, and because the privilege is, of course, qualified. But Defendant does not say anything about *why* that conclusion was reached in that case on its unique and unusual facts, nor does he attempt to equate them to the subject matter of Defendant’s motion here. The records restricted in *Archuleta* contained “gruesome” and “horrific” details about a “homicide [that] was committed in a particularly depraved manner, consisting of physical torture, anal object rape, and massive bodily injury to the victim prior to death,” as well as “information concerning sodomy, physical torture to the victim’s testicles with battery cables, and anal penetration with a tire iron.” *Id.* at 236, 239 & n.21.

Because the defense has refused to provide the News Media with their underlying motion, the News Media (and the public) are left to guess what the supposed evidence is that

Defendant seeks to exclude. But given the circumstances of the alleged crime, they are certain it is not that, or likely even in the same ballpark.

To put a sharper point on it, no one has ever argued the public's constitutional right of access is absolute and can never, even in rare or unusual circumstances, be overcome. It is a qualified right. But Defendant's attempt to spin *Archuleta* and *Gannett* into a categorical argument that the public has *no* right of access to any pretrial suppression motions or the evidence they concern, no matter their content, has no grounding in any constitutional precedent.

3. *United States v. McVeigh*

Third, Defendant cites *United States v. McVeigh*, 119 F.3d 806 (10th Cir. 1997) (*per curiam*), for the assertion (at 5) that the public has no right “to inadmissible evidence.” But Defendant again does not explain what was actually at issue in *McVeigh*. That case does not support Defendant's argument.²

As a threshold matter, the question in *McVeigh* was not primarily access to pretrial suppression hearings or associated motion papers, as Defendant incorrectly implies. The question, instead, was whether the public had a right to access *underlying evidence* that was excluded (and discussed in redacted portions of the publicly filed papers) after an open suppression hearing had been held in the full light of day. Indeed, in the same breath, the Tenth Circuit explicitly noted that were it to need to decide the issue, the *Press-Enterprise II* test would be satisfied for suppression motions:

Suppression motions have historically been open to inspection by the press and public. The suppression hearing is a critical pre-trial proceeding, one which is often “as important as the trial itself.” *Waller v. Georgia*, 467 U.S. 39, 46-48, 81 L. Ed.

² *McVeigh* is obviously not binding on this Court, and if it were interpreted the way Defendant argues, it would run headlong into the holding of *Archuleta* recognizing a federal and state constitutional right to pretrial motion papers. But in any event, *McVeigh* does not actually say what Defendant says it stands for.

2d 31, 104 S. Ct. 2210 (1984). Because the suppression hearing is the point in the process where the conduct of law enforcement officers is at issue, the public interest in access to a suppression hearing is particularly high. *Id.* Thus, the *Press Enterprise II* test of “experience and logic” suggests that the qualified right of access applies to the suppression motion.

Id. at 813.

Also, unlike *McVeigh*, there has been no ruling in this case that the evidence at issue is inadmissible. In *McVeigh*, the court was reviewing *on appeal*, under an abuse of discretion standard, the release of certain information where there had already been a determination that the evidence was inadmissible. That posture is entirely unlike this case, where Defendant is merely asserting that certain evidence should be excluded. No court has held that the mere *possibility* that evidence will be excluded at the trial court level is sufficient to prophylactically seal all evidentiary motions until a ruling is made. To reach that conclusion would turn the presumption of access on its head and permit every single motion to exclude evidence to be filed under seal, contrary to the very right of access noted in *McVeigh*. See, e.g., *New York v. Arroyo*, 675 N.Y.S.2d 272 (N.Y. Cty. Ct. 1998) (distinguishing *McVeigh* in part because “the redacted items pertaining to the suppression issue had been ruled inadmissible”).

In addition, and perhaps most fundamental, the *McVeigh* court allowed certain evidence to be redacted based upon a finding that “[a]ccess to the redacted information is not needed for a full understanding of the court’s decision on the motion to suppress[.]” *McVeigh*, 119 F.3d at 813. That was not only because “the suppression hearing itself was open,” *id.*, but also because reasons for suppression in that case did *not* depend on the actual content of the suppressed evidence. *Id.* at 813. Rather, the court’s suppression order was based on the circumstances under which the evidence was obtained—whether the defendant’s interview with the FBI was unlawful, and whether the notes taken in that interview were hearsay. *Id.* at 809, 814 (“Thus,

both the press and the public had ample opportunity to understand the *circumstances surrounding Nichols' statements*, and the reasons why those statements were deemed inadmissible against McVeigh.” (emphasis added)).

In this case, although the News Media has unjustifiably been prevented from seeing the actual arguments Defendant is making, it is quite likely those arguments are based on the content of the evidence at issue. Denying the public access to that information will necessarily preclude the public from understanding the nature of the proceedings and the basis for any ruling by the court. Unlike *McVeigh*, there is no way for the public to have a “full understanding of the court’s decision on the motion to suppress” without knowing what the evidence at issue is. *Id.* at 813. This case is much more like other cases where content-based evidentiary motions have not justified closure, and the public has been granted access to evidence despite its inadmissibility.³

In any event, the *McVeigh* court’s language regarding underlying, inadmissible evidence on appeal provides no authority for keeping motion papers merely *asserting* inadmissibility under seal at the district court level. Defendant has voluntarily brought an exclusion motion seeking a public court ruling presumably based on the content of the evidence at issue. Having done so, he cannot complain that the content of the evidence is now subject to the public’s constitutional right of access.

³ See, e.g., *Florida v. Kozma*, No. 92-15914 CF10E, 1994 WL 397438 (Fla. Cir. Ct. Feb. 4, 1994) (allowing public access to defendant’s videotaped statement that contained “potentially damaging admissions” even though it would be inadmissible at trial); *BP Products N. Am., Inc. v. Houston Chronicle Publ’g Co.*, 263 S.W.3d 31 (Tex. Ct. App. 2006) (granting public access to unfiled witness statements exchanged in discovery); *State v. Grecco*, 455 A.2d 485, 486-87 (N.J. App. Div. 1982) (granting public access to tape recordings played during pretrial hearings even though “they had not yet been admitted into evidence”); *Florida Freedom Newspaper, Inc. v. Florida*, No. 03-2065-CA-K, 2004 WL 1669663 (Fla. Cir. Ct. Mar. 2, 2004) (granting newspaper access to search warrants, affidavits supporting search warrants, and materials seized pursuant to search warrant).

CONCLUSION

For all the foregoing reasons, Defendant's motion should be denied.

RESPECTFULLY SUBMITTED this 29th day of January 2026.

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